

Petition to modify irrevocable trust is recommended for approval as prayed.

22. S-PR-0014103 In Re the Estate of Nunes, Darlene Marie

Missing required allegations at ¶ 6 of the petition. The response to calendar notes addressed only the ¶ 7 issue.

23. S-PR-0014106 In Re the Annette M Sunde Supplemental Needs Trust

Appearance is required for hearing on trust petition.

It is recommended the trustee 1st / final account be approved.

It is recommended the request to confirm trusteeship of Foster be approved in part. The trust grants power to the trustee of the Carol A Gage & James W Gage Rev Living Trust to name a successor trustee of the SNT share. The power to name a successor SNT trustee cannot be limited to the time of Carol Gage's death as an executor cannot be appointed until after death and appointment could occur a significant period time—even years—after death. Nothing in the trust language limits the power of an executor or of the trustee to act to the time at or very soon after settlor's death. However, neither does the trust language empower the trustee to remove SNT successor trustees at will (or even for cause). As Kinsman has stated an intention to resign, it is recommended the court find that Fielding, as trustee of the Carol A Gage & James W Gage Rev Living Trust, has power to name a successor.

It is recommended the request to modify the trust be denied under Prob.C. § 17202.

Confirmation of Foster as trustee, however, cannot include waiver of bond. Foster is required to be bonded. See Prob.C. § 15602(a)(3). Petitioner offers nothing which constitutes "compelling circumstances" to excuse the requirement for trustee bond. Prob.C. § 15602(b).

These calendar notes are not a tentative ruling by the court on the merits of the petition. They are provided to assist the parties and the court to prepare for the hearing.

24. S-PR-0014108 In Re the Stevens Fam Trust

Appearance is required for hearing on petition to compel trustee account.

25. S-PR-0014110 In Re the Estate of Bayes, Peter

Missing sufficient publication of notice of hearing. The notice as published was for a July 24 hearing that was rescheduled by the court. Petitioner was notified of the revised court date by an order filed June 2. Missing published notice of hearing for the July 27 date.

Court determination is needed as to petitioner's request both to waive bond and for nominal bond of \$20,000.

26. S-PR-0014111 In Re the Estate of Simonis, Brinlee Kara Renee

Missing sufficient notice of hearing for petition to administer estate. The notices previously filed, served, and published, are for a July 24 hearing that was rescheduled by the court. Petitioner was notified of the revised court date by an order filed June 2. Missing any notice for the rescheduled July 27 date. Additionally, all notices, as filed and published, fail to refer to the amended petition. Amended petition requires complete re-noticing (C.R.C. 7.53); notice must refer to "the complete title of the pleading to which the notice relates" (C.R.C. 7.50).

Missing legal or factual basis for waiver of bond. Petitioner's allegations concerning the nature of decedent's estate do not constitute a factual basis for waiver of bond. Missing waiver of bond by Logan Simonis.

27. S-PR-0014117 In Re the Estate of Clyde, Timothy Scott

It is recommended the court consolidate this matter with S-PR-0014231, *Estate of Clyde*, and S-PR-0014251, *Estate of Clyde*. This case number, S-PR-0014117, should be the lead case and all future filings should be filed using only that number. C.R.C. 3.350(b).

It is further recommended all matters as a consolidated proceeding be set for hearing October 26, 2026.

For this proceeding by petitioner Nikkollette Clyde, the following additional calendar notes are provided:

Missing sufficient notice of hearing. Notice as filed, served, and published relates only to a July 24, 2026, hearing which the court rescheduled. Petitioner was notified of the revised court date by an order filed June 2. Missing any notice for the rescheduled July 27 date.

Missing sufficient notice of hearing for amended petition. Amended petition requires complete re-noticing, including new publication. C.R.C. 7.53. Notice, service, and publication for amended hearing are needed.

Missing required allegations at §§ 5a(3)–(4) (RDP), 5a(7)–(8) (issue of predeceased child(ren)), and 5a(b) (step- or foster child(ren)).

Missing verification to objections by Eric Sparks. Prob.C. § 1021.